

**SUBSTITUTE FOR
HOUSE BILL NO. 4833**

A bill to amend 1961 PA 236, entitled
"Revised judicature act of 1961,"
by amending section 8123 (MCL 600.8123), as amended by 2018 PA 6.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 8123. (1) The forty-third district consists of the cities
2 of Madison Heights, Ferndale, and Hazel Park, is a district of the
3 third class, and has 3 judges.

4 (2) The forty-fourth district consists of the cities of Royal
5 Oak and Berkley and has 2 judges.

6 (3) The forty-fifth district consists of the cities of
7 Huntington Woods, Oak Park, and Pleasant Ridge and the township of
8 Royal Oak in the county of Oakland, is a district of the third
9 class, and has 2 judges.



1 (4) The forty-sixth district consists of the cities of
2 Southfield and Lathrup Village and the township of Southfield in
3 the county of Oakland, is a district of the third class, and has 3
4 judges.

5 (5) The forty-seventh district consists of the cities of
6 Farmington and Farmington Hills, is a district of the third class,
7 and has 2 judges.

8 (6) The forty-eighth district consists of the cities of
9 Birmingham, Bloomfield Hills, Sylvan Lake, Keego Harbor, and
10 Orchard Lake Village and the townships of Bloomfield and West
11 Bloomfield in the county of Oakland, is a district of the third
12 class, and, **subject to subsection (7)**, has the following number of
13 judges:

14 (a) Until the date determined under subdivision (b), the
15 forty-eighth district has 3 judges.

16 (b) The forty-eighth district has 2 judges beginning on the
17 earlier of the following dates:

18 (i) The date on which a vacancy occurs in the office of
19 district judge in this district, unless the vacancy occurs after
20 the vacating judge has been defeated in a primary or general
21 election.

22 (ii) The beginning date of the term for which an incumbent
23 district judge in this district no longer seeks election or
24 reelection to that office.

25 **(7) If each district control unit of the forty-eighth district**
26 **approves the maintaining of 3 judges in the same manner as is**
27 **required for an additional district judgeship under section 8175(1)**
28 **and (2), subsection (6) (b) does not apply and section 8175(3)**
29 **applies to the maintaining of the 3 judges.**



1 **(8)** ~~(7)~~ The fiftieth district consists of the city of Pontiac,
 2 is a district of the third class, and has ~~the following number of~~
 3 ~~judges:~~

4 ~~(a) Until the date determined under subdivision (b), 4 judges.~~

5 ~~(b) The fiftieth district has 3 judges. beginning on the~~
 6 ~~earlier of the following dates:~~

7 ~~(i) The date on which a vacancy occurs in the office of~~
 8 ~~district judge in this district, unless the vacancy occurs after~~
 9 ~~the vacating judge has been defeated in a primary or general~~
 10 ~~election.~~

11 ~~(ii) The beginning date of the term for which an incumbent~~
 12 ~~district judge in this district no longer seeks election or~~
 13 ~~reelection to that office.~~

14 **(9)** ~~(8)~~ The fifty-first district consists of the township of
 15 Waterford in the county of Oakland, is a district of the third
 16 class, and has 2 judges.

17 **(10)** ~~(9)~~ The fifty-second district consists of the county of
 18 Oakland except the cities of Madison Heights, Ferndale, Hazel Park,
 19 Royal Oak, Berkley, Huntington Woods, Oak Park, Pleasant Ridge,
 20 Southfield, Lathrup Village, Farmington, Farmington Hills,
 21 Northville, Sylvan Lake, Keego Harbor, Orchard Lake Village,
 22 Birmingham, Bloomfield Hills, and Pontiac and the townships of
 23 Royal Oak, Southfield, West Bloomfield, Bloomfield, and Waterford,
 24 is a district of the second class, and is divided into the
 25 following election divisions:

26 (a) The first division consists of the cities of Novi, South
 27 Lyon, Wixom, and Walled Lake and the townships of Milford,
 28 Highland, Commerce, Lyon, and Novi and has 3 judges.

29 (b) The second division consists of the city of the village of



1 Clarkston and the townships of Springfield, Independence, Holly,
2 Groveland, Brandon, Rose, and White Lake and has 2 judges.

3 (c) The third division consists of the cities of Rochester,
4 Auburn Hills, Rochester Hills, and Lake Angelus and the townships
5 of Oxford, Addison, Orion, and Oakland and has 3 judges.

6 (d) The fourth division consists of the cities of Troy and
7 Clawson and has 2 judges.